

		The elements of a civil claim under Penal Code Section 496 are: (1) that the particular property was stolen; (2) that the accused received, concealed or withheld it from the owner thereof; and (3) that the accused knew that the property was stolen. (<i>Finton Construction, Inc. v. Bidna & Keys, APLC</i> (2015) 238 Cal.App.4th 200, 213.) Here, the FAC alleges Plaintiff's property in excess of \$950 was stolen, that Defendant Hertz received that property, and that Defendant knew the property was stolen under false pretense. (See FAC ¶¶ 46-47.) <u>Fourth Cause of Action (Violations of the UCL)</u> The fourth cause of action alleges Defendant Hertz violated the UCL by knowingly and intentionally creating fraudulent car rental agreements to place bogus charges on Plaintiff's credit card. (FAC ¶ 51.) Business & Professions Code Section 17200 prohibits "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising." Each prong of the UCL provides a separate and distinct theory of liability. (<i>South Bay Chevrolet v. Gen. Motors Acceptance Corp.</i> (1999) 72 Cal.App.4th 861.) In addition, the Plaintiff must allege injury in fact and loss of money or property suffered as a result of the unfair business practices. (Bus. & Prof. Code § 17204; <i>R & B Auto Ctr. v. Farmers Group, Inc.</i> (2006) 140 Cal.App.4th 327, 360.) Under the unlawful prong, a violation of law may be actionable as unfair competition under Cal. Business & Professions Code section 17200. (<i>Lueras v. BAC Home Loans Servicing, LP</i> (2013) 221 Cal.App.4th 49, 81.) Here, the FAC alleges theft in violation of Penal Code section 496. The FAC also alleges Plaintiff suffered injury in fact and loss of money as a result, including the money charged to his credit card. (FAC ¶¶ 46, 47, 51, 52.) No later than 10 days after service of the notice of ruling, Defendant shall file and serve an answer to the Complaint. (Cal. Rules Ct., Rule 3.1320(g).) Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to June 26, 2025, at 9:00 a.m. in this Department. Plaintiff to give notice.
8	Momenirad v. Hyundai Motor America	<u>Motion for Attorney Fees</u> Plaintiff Ali Momenirad moves for an award of attorney fees and costs against Defendant Hyundai Motor America. For the following reasons, the motion is GRANTED IN A REDUCED AMOUNT. Defendant shall

		pay Plaintiff reasonable attorney fees in the amount of \$15,340.50 and costs in the amount of \$924.58. Plaintiff and Defendant executed a settlement agreement at some point before December 12, 2024. Neither Plaintiff nor Defendant provided the Court with a copy of the settlement agreement. According to Plaintiff, the settlement agreement provided for attorney fees and costs reasonably incurred as determined by stipulation or by motion. (Saeedian Dec., ¶ 22.) Defendant does not dispute that Plaintiff is entitled to fees, though Defendant disputes the reasonableness of the hourly rate and the hours claimed by Plaintiff's counsel. Civil Code section 1794, subdivision (d) requires the attorney fees to be based on "actual time expended" and to have been "reasonably incurred." In <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 818–819, 820, the court concluded, "the statutory language of section 1794, subdivision (d), is reasonably compatible with a lodestar adjustment method of calculating attorney fees" because "the lodestar adjustment method <i>is</i> based on actual, reasonable attorney time expended as the objective starting point of the analysis [citation], it is compatible with this statutory provision." The lodestar adjustment method requires the trial court first to determine a lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. (<i>Robertson</i>, 144 Cal.App.4th at 819, citing <i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 48–49.) For Song–Beverly Consumer Warranty Act claims, "[a] prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount."' (<i>Nightingale v. Hyundai Motor America</i> (1994) 31 Cal.App.4th 99, 104; <i>Doppes</i>, 174 Cal.App.4th at 998.) The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (See <i>Northwest Energetic Servs., LLC v. California Franchise Tax Bd.</i> (2008) 159 Cal.App.4th 841, 879–82; <i>Graciano v. Robinson Ford Sales, Inc.</i> (2006) 144 Cal.App.4th 140, 154.) The court is not required to impose a multiplier; the decision is discretionary. (<i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089; <i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1241.) The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal. 4th 1084, 1094.) This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight contingent fee basis, or are in house counsel. (<i>Id.</i>) To determine that reasonable market value, the court must determine whether the requested rates are within the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work.
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